

A Judge's Guide to Autopsy Reports and Scientific Evidence

शव परीक्षण प्रतिवेदन र वैज्ञानिक प्रमाणबारे न्यायाधीशका लागि मार्गदर्शन

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ROLE OF JUDGES IN SCIENTIFIC EVIDENCE

**Judges are the ultimate evaluators of expert evidence,
Expert opinion is advisory, not binding**

PRESENTATION ROADMAP

- **Part 1:** Foundations of Forensic Evidence
- Part 2:** Autopsy Report Decoded
- Part 3:** Special Investigations & Pitfalls
- Part 4:** Courtroom Evaluation
- Part 5:** Question and answer

MEDICINE & LAW IN NEPAL

- राष्ट्रिय फौजदारी कार्यविधि संहिता, २०७४ – दफा १६६
प्रमाण ऐन अन्तर्गत विशेषज्ञ साक्ष्य
- अदालत चिकित्सकीय रायमा बाध्य हुँदैन

PLACE OF AUTOPSY EVIDENCE

- Usually corroborative, not standalone
Must align with scene, weapon & testimony
Chain of custody is critical

- **Medico-legal autopsy – mandatory**
Clinical autopsy – consent based
Family consent not required in MLC cases

STRUCTURE OF AUTOPSY REPORT

- Identification
- History
- External examination
- Internal examination
- Lab reports
- Opinion

PREAMBLE & HISTORY

- **Incorrect history = incorrect opinion**
Check consistency with case facts

EXTERNAL EXAMINATION

- Rigor, livor, algor mortis
Injury type, size & location
Climate affects postmortem changes
- Rigor, Livor, Algor Mortis

TIME SINCE DEATH

- Changes after death
 - Rigormortis
 - Postmortem hypostasis or Algor mortis
 - Decomposition
 - Food in the stomach

Rigor mortis



TYPES OF INJURIES

- **Abrasion – Contusion – Laceration
Incised wound – Stab wound**

Abrasion



Contusion



Laceration



Incised wound



Defense wound



Gun shot wound

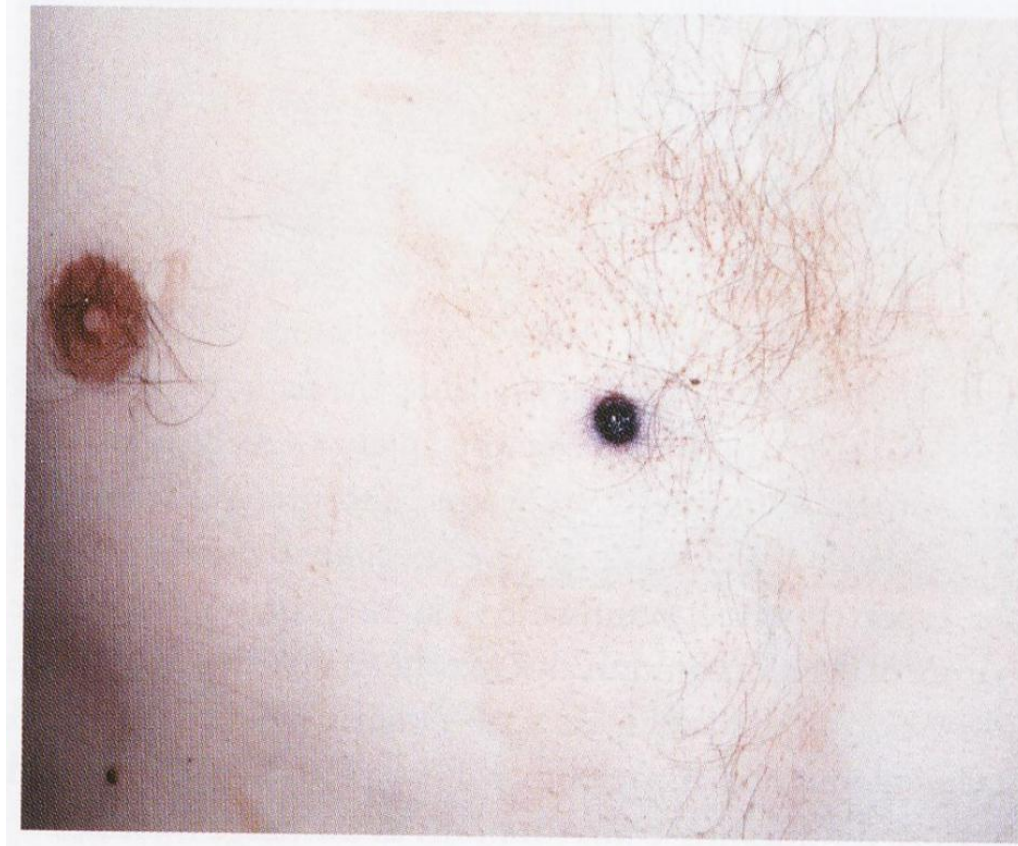


FIGURE 8.43 *Entrance of a .22 rifle bullet in a shooting accident.*

Hesitation cut wound



INTERNAL EXAMINATION

- Fatal injuries may be internal only
No external injury ≠ no violence

CAUSE, MECHANISM & MANNER

- Cause of Death – Medical
Mechanism – Physiological failure
Manner – Medical opinion only

ANCILLARY INVESTIGATIONS

- Toxicology is essential in suspicion
Histopathology supports timing
DNA strengthens identity

KEY TAKEAWAYS

- Scientific reports and Autopsy reports are not the final truth
- Judicial reasoning is supreme
- Corroboration is essential

THANK YOU

QUESTION AND ANSWER